MINDWARE

Partner Order Form

This Partner Order Form ("**Order**") is made between the parties referred to below and sets out the basis on which the Partner wishes to order (i) the "**Alfabet Software**" and (ii) the "**Horizzon Software**", together referred to as the "**Software**", set out in this Order. This Order is placed on the Supplier pursuant to the terms of the Partner Agreement referred to below ("**Agreement**"). Terms which are used but not expressly defined in this Order shall, unless the context requires otherwise, bear the meaning given to them in the Agreement. The parties agree that, notwithstanding the provision of Services prior to the Effective Date of this Agreement, the terms of this Agreement apply to and govern such Services.

Parties		
between	Mindware Technology Trading LLC ("**the Supplier**")	Emircom LLC ("**the Partner**")
Reg. No.	**QSAG-260300002**	
Registered office	10th floor, Cayan Business Centre, Barsha Heights, P.O. Box 55609, Dubai, United Arab Emirates	P.O.Box: 34895, Zayed the 1st Street, Al Zahiya, Abu Dhabi, UAE

Customer	
Name	Abu Dhabi Police HQ ("**the Customer**")
Reg. No.	
Registered office	Sheikh Zayed Road, Al Muroor, Abu Dhabi, UAE

General Information	
Service / Licence Type	Subscription
Start Date	The Effective Date of this Order Form
Term	12 months from the Start Date
Renewal Term	Subject to negotiation between the Parties.
Maintenance and Support Service Level for the Alfabet Software	Enterprise Active Support, as described & updated at www.alfabet.com/support-policies, applies.
Maintenance & Support Service Level for the Horizzon Software	The BizzDesign Horizzon - Service Level Agreement (SLA), as described at https://bizzdesign.com/policies/terms-and-conditions, applies.

Payment and Invoicing Terms		
Fees	**AED 383,959.88** (excluding VAT). Subscription Fees include both license and Maintenance Services Fees.	
Payment Terms	60 days from the date of invoice	
Invoice Terms	**Invoice Date**	**Invoice Amount**
	On the Start Date	**AED 383,959.88** (excluding applicable taxes)

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Alfabet Software			
Product Name and Operating System	**Quantity and License Metric**	**Product Code**	**Usage**
Alfabet IT Transformation Team on Windows	1 x Server	DPBT4	Production
-Alfabet Analysis User Team on Windows	500 x Named User	ABTAT	Production
-Alfabet Business User Team on Windows	5 x Named User	ABTBN	Production
-Alfabet Business User Non-PROD on Windows	5 x Named User	ABTBT	Non-Production
-Alfabet Transformation Server Non-PROD on Windows	2 x Server	ABTVN	Non-Production
-Alfabet Transformation Server Team on Windows	1 x Server	ABTVT	Production
Alfabet Data Steward User Team	10 x Named User	ABTDT	Production
Alfabet EAM Team	1 x Server	ABTET	Production
Alfabet Target Arch. Planning Team	1 x Server	ABTTT	Production
Alfabet Strat. Portfolio Mgt. Team	1 x Server	ABTST	Production
Alfabet Lean Portfolio Mgt. Team	1 x Server	ABTLT	Production
Horizzon Software			
Horizzon Design On Premise Subscription User	5 x Named User	DSG_OnPrem_Sub	Production
Horizzon Contribute On Premise Subscription User	10x Named User	CONT_OnPrem_Sub	Production
Horizzon Consume On Premise Subscription User	10x Named User	CONS_OnPrem_Sub	Production

License Metrics	
Named User	Software licensed by 'Named User' is limited to use by a total number of users which does not exceed the licensed quantity. For these purposes a 'user' means a uniquely identified individual employee of the Customer, entity (e.g. interface), device or process that accesses, operates, or maintains such Software.
Server	A 'Server' means a running instance of the Software capable of accepting requests and giving responses accordingly.

Non-Production Environments
The licenses of those of the Software whose "Usage" type is referred to in the table above as "Non-Production" ("**the Non-Production Environment Software**") are restricted use licenses. The Non-Production Environment Software may be used by the Customer solely for testing & development purposes only and may not be used for the processing of live data in a production environment or any purposes other than testing & development purposes.

1 **ORDER**

1.1 **Order**: The Partner hereby orders the Software set out in this Order on the terms and subject to the conditions set out in the Agreement and this Order. In the event of any conflict, the terms set out in this Order shall prevail. Any renewal of the agreement for the Software upon the expiry of the Term shall be handled directly between Supplier and Customer and Partner shall not (in the absence of any agreement to the contrary) be entitled to any commission or other fee on respect of any such renewal.

2 **PROFESSIONAL SERVICES**

2.1 **Professional Services**: The Fees referred to above include the delivery of the Commitment referred to below with a cumulative value set out below (excluding training) to the Customer during the Period as indicated below. Additional associated fees and expenses (such as travel expenses or additional costs for delivery outside normal Business Hours) will be invoiced separately. The Customer shall not be entitled to any refund or credit of any part of the fees referred to in this Order in the event of any failure by it to order any part of the Commitment within the Period. All Services are provided on the basis of the Bizzdesign Group's Professional Services Terms and Conditions which are made available at HTTPS://BIZZDESIGN.COM/POLICIES/TERMS-AND-CONDITIONS. Services shall be provided on days and at locations to be agreed between the parties. Customer shall give Supplier at least one month's notice of its requirements.

Services Details	
Service Description	1 x Horizzon Initial Setup Professional Services Package (SETUP_Perp_HOR) 1 x Horizzon BPM Enablement Professional Services Package (BPM_Enable)
Commitment	Fixed Price Professional Services Package
Period	12 months from the Effective Date
Services Fees	AED 36,725.00 (excluding applicable taxes)

3 **COLLECTION RESPONSIBILITY**

3.1 **Collection Responsibility**: Partner acknowledges that its inability to collect payment from Customer does not affect Partner's obligation to pay for the Software ordered from Supplier pursuant to this Order.

4 **DELIVERY/ACCEPTANCE**

4.1 **Delivery and Acceptance**: The Software and Documentation will be distributed electronically. Software will be deemed accepted upon delivery of the software activation key and download instructions and any acceptance will not be revoked. Customer is responsible for installation of the Software.

5 **PASS THROUGH OBLIGATION & EVIDENCE OF CUSTOMER ORDER**

5.1 **Pass Through Obligation:** The Partner shall (and, where a Reseller is engaged, shall contractually oblige such Reseller to) enter into a binding agreement with the Customer that imposes obligations no less restrictive than those set forth in the Agreement, particularly to ensure the adequate protection of the Supplier's intellectual property.

5.2 **Evidence of Customer Order**: The Partner guarantees to Supplier that prior to ordering the Software for the Customer from Supplier, it has (and, where a Reseller is engaged, has contractually obliged such Reseller to have) executed a binding agreement with the Customer (collectively the "Customer Agreement") for the usage of the Software and that it will provide a copy of the same to Supplier at Supplier's request.

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6 **DATA PROTECTION**

6.1 **No Processing of GDPR Personal Data**. The Partner represents and warrants to the Supplier that the Customer does not process personal data as defined under Art. 4 GDPR ("**GDPR-relevant personal data**") which is subject to General Data Protection Regulation (EU) 2016/679 ("**GDPR**"), and GDPR-relevant personal data will not be provided to the Supplier. Partner shall inform Supplier promptly should it become necessary for Customer to transmit or grant access to GDPR-relevant personal data, so that the parties will be able to discuss and agree on a contract for data processing in accordance with GDPR requirements. Partner acknowledges and agrees that unless and until such a contract is entered into between the parties, Supplier shall not be responsible for any non-compliance with the GDPR. Partner shall indemnify the Supplier in full against any claims by third parties (including data protection supervisory authorities) arising from Partner's breach of this clause.

7 **AI COMPONENTS AND GENERATED CONTENT**

7.1 **AI Generated Content**: The Software may include components that utilize artificial intelligence ("**AI**") to generate content ("**AI Generated Content**") either from user inputs or contextual information derived from content provided by the Customer. The AI Generated Content is provided "as is" and without any warranty of any kind, express or implied, including but not limited to any implied warranties of merchantability, fitness for a particular purpose and non-infringement. The Supplier makes no representations or warranties regarding the accuracy, completeness, reliability, or suitability of the AI Generated Content and shall not be liable for any damages, including but not limited to direct, indirect, incidental, special, consequential, or punitive damages, arising out of or in connection with the use of the AI Generated Content.

7.2 **Role as Integrator**: For the purposes of the AI Act, the Supplier acts solely as an integrator of AI components and does not develop or modify the underlying AI technologies. The Supplier's role is limited to integrating these components into the Software.

7.3 **Data Processing**: AI Generated Content will require that content provided by the Customer be transmitted to and temporarily stored and processed in alternative third party locations. The Supplier shall take reasonable measures to ensure the security and confidentiality of such data during such processing and such data shall not be used to train, develop or improve any AI models without the Customer's explicit consent. The Customer further represents and warrants that the user inputs when using AI components do not contain any personal data as defined under Art. 4 GDPR. Customer shall indemnify the Supplier in full against any claims by third parties (including data protection supervisory authorities) arising from Customer's failure to comply with this clause.

7.4 **Explicit Consent**: By using the AI-Generated Content, the Customer acknowledges and agrees to the terms of this clause as well as the relevant terms of the respective AI provider (https://aws.amazon.com/service-terms/ for AWS/Bedrock and https://www.microsoft.com/licensing/terms/productoffering/onlineservices for Azure AI).

8 **EXPORT CONTROL**

8.1 **Export Control**: To the extent that any national and international export control, sanctions and trade control laws and regulations apply to this Agreement, the Parties agree to comply with the same and obtain any required approval, reporting and/or information obligations. Partner shall defend and indemnify the Supplier against any liability arising from any breach of this clause by the Partner. Supplier is not required to perform any obligation under the Agreement if prohibited by such export control laws, regulations or restrictions.

8.2 **Usage restriction**: Partner will not use, access or provide access to the Software in any manner that violates an applicable economic, financial or trade prohibition, sanction or embargo, which may include but is not limited to such prohibitions, sanctions or embargoes enacted or imposed by law or other restrictive measure and administered or enforced by (i) the United Nations Security Council, (ii) the United States government, (iii) the European Union or any of its member states' governments, (iv) the United Kingdom, (v) the Singaporean government, (vi) the Swiss Confederation, or (vii) any other authority that has jurisdiction over the Partner, Supplier or the relevant project or activity for which the Software is being used, accessed or provided.

8.3 **Pass through obligation of Export Control and Sanctions terms**: Partner guarantees to Supplier that the binding, irrevocable agreement with the Customer includes an Export Control Section at least as restrictive and protective as the following minimum terms and conditions: [To the extent that any national and international export control, sanctions and trade control laws and regulations apply to this Agreement, the parties agree to comply with the same and obtain any required approval, reporting and/or information obligations. Customer shall defend and indemnify the Supplier against any liability arising from any breach of this clause by the Customer. Supplier is not required to perform any obligation under the Agreement if prohibited by such export control laws, regulations or restrictions.]/ [Customer will not use, access or provide access to the Software in any manner that violates an applicable economic, financial or trade prohibition, sanction or embargo, which may include but is not limited to such prohibitions, sanctions or embargoes enacted or imposed by law or other restrictive measure and administered or enforced by (i) the United Nations Security Council, (ii) the United States government, (iii) the European Union or any of its member states' governments, (iv) the United Kingdom, (v) the Singaporean government, (vi) the Swiss Confederation, or (vii) any other authority that has jurisdiction over the Customer, Supplier or the relevant project or activity for which the Software is being used, accessed or provided.]

9 **THIRD PARTY COMPONENTS**

9.1 **Third Party Components**: Partner guarantees to Supplier that the binding, irrevocable agreement with the Customer includes a Third Party Components Section at least as restrictive and protective as the following minimum terms and conditions: [The Software may contain or be distributed with certain open source, free, or commercial third party components ("**Third Party Components**"), which may be subject to special license terms and conditions ("**Third Party Terms**") located at http://alfabet.com/licenses. Third Party Terms include important licensing and warranty information and disclaimers of third party licensors. For the avoidance of doubt, if Partner uses the Software in accordance with the Documentation, the Third Party Terms do not restrict the rights granted under this Agreement. In the event that a third party manufacturer no longer provides active support for any Third Party Component, Supplier will use commercially reasonable efforts to respond to any issues with the Software related to the Third Party Components.]

10 **ENTIRE AGREEMENT**

10.1 **Entire Agreement**: This Order as may be amended from time to time constitutes the entire agreement between the parties and supersedes all previous communications, non-fraudulent representations or prior and contemporaneous agreements (written or oral) between the parties with respect to the subject matter hereof.

11 **Subscription**

11.1 **Subscription License**: The licenses granted are solely for the Subscription Term (and any renewal thereof). On any expiry or termination then all rights to the Software will automatically terminate and Customer will discontinue all use of the Software and, within 10 days after such expiry or termination, delete the Software and all copies and related materials (and, upon request, certify such destruction to Supplier).

12 **HOSTING SERVICES**

12.1 **Hosting Services**: Customer's right of use includes the entitlement to appoint a third party ("**Hosting Services Provider**") for the purposes of hosting the Software limited to infrastructure services and management (provision of associated hardware and operating system), either in an "On Premise" environment (on local computers of the Customer or the Hosting Services Provider) or "Cloud" environment (via an organization that provides cloud computing resources).

13 **ASSIGNMENT**

13.1 **Assignment**: Supplier may transfer the Agreement and/or this Order or any rights or obligations thereunder, in whole or in part: (i) to an Affiliate; (ii) to any third party in connection with the assignment to any such third party of the right of the Supplier to receive any sums payable by the Partner to it hereunder; (iii) as part of a merger, reorganization, acquisition, sale or transfer of any of Supplier's assets, voting securities or ownership of a part or whole of the Supplier's rights or obligations under the Agreement; or (iv) as part of a merger, reorganization, acquisition, sale or transfer of one or more of Supplier's business divisions or units. "Affiliate" is any business entity which now or in the future controls, is controlled by or is under common control with Supplier through the ownership of more than fifty percent (50%) of the outstanding voting stock of the controlled corporation or more than fifty percent (50%) of the equity interests of a non-corporate entity.

Effective Date
The last date of signing by duly authorized representatives of all of the parties.

The parties have shown their acceptance of the terms of this Order by signing it below, the terms of this Order will supersede any other terms of a purchase order or similar document that has been shared or will be shared by the Partner even if such terms have been accepted by the Supplier. This Order shall come into force and effect upon the Effective Date referred to above. This document may be executed in one or more counterparts, with the same effect as if the parties had signed the same document. Each counterpart so executed shall be deemed to be an original and all such counterparts shall be construed together and shall constitute one agreement. The parties agree to the use of digital signatures.

Agreement			
Duly authorized for and on behalf of Supplier		Duly authorized for and on behalf of Partner	
Signed		Signed	
Name		Name	
Title		Title	
Date		Date	